

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALFRED STERN III,

Petitioner

VS.

LEILA DUARTE,

Respondent

) Case Number: FPT-26-378850

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Alfred Stern III (Father) and Respondent Leila Duarte (Mother). The minor child subject to this proceeding is Sirena Lakshmi Cheza Renee Stern (05/24/25).
- 2) On February 25, 2026, Father filed a Request for Order seeking initial child custody and visitation (Parenting Time) orders. In particular, Father is seeking orders for joint legal and joint physical custody. Father did not indicate what sort of orders he was seeking relative to parenting time.
- 3) On May 4, 2026, Mother filed a Response to the underlying UPA Petition, however, she has not filed a Responsive Declaration to Father's RFO. Within her UPA Response, she requests sole legal and sole physical custody. Mother requests that Father have visitation with the minor child every weekend. Mother alleges domestic violence and sexual assault by Father. Mother states she does not believe Father is a danger to the child.

1 4) The Request for Order to Change Visitation was originally set for “readiness” on May 5, 2026.

2 On May 5, 2026, the Court referred the parties to FCS Mediation to occur on June 9, 2026 and for
3 a return hearing to occur on June 18, 2026.

4 5) On June 8, 2026, the Court received a Tier II report indicating there is an open CPS investigation
5 against Mother. While the allegations will not be repeated in this section, the Court will discuss
6 the allegations with the parties during the hearing

7 **B. Findings and Order**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child is the United States.

12 2) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ODIELSON SOUZA,

Petitioner

VS.

FENNEL DOYLE,

Respondent

) Case Number: FPT-26-378876

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF REQUEST FOR ORDER AND VISITATION CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Odielson Souza (Father) and Respondent Fennel Doyle (Mother). They share one minor child named Fabricio Souza Doyle born 02/08/13.
- 2) On March 26, 2026, Father filed a Request for Order seeking initial custody and visitation (i.e., parenting time) orders. Father alleges the last time he saw his son was April 27, 2025. In particular, Father requests:
 - a. Father would like joint legal and joint physical custody orders;
 - b. Parenting time for Father from Fridays after school until Sunday at 6:30 p.m., drop off at Mother's home.
 - c. Court-ordered regular virtual visitation on Mother's custodial days.
- 3) On April 27, 2026, Father filed a Supplemental Declaration, which has been read and considered by the Court.

1 4) On May 5, 2026, the matter was heard on the Court's "Readiness" calendar. The Court referred
2 the parties to FCS Mediation to occur on June 1, 2026 and set a return hearing for June 18, 2026.

3 5) On June 1, 2026, Mother filed a Responsive Declaration to Father's RFO, which has been read
4 and considered by this Court.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child(ren) is the United States.

10 2) The Court orders both parent to have joint legal and joint physical custody.

11 3) Father's parenting time with the minor child shall be on the 1st, 3rd, and 4th weekends of each
12 month from Friday afterschool until Sunday at 6:00 p.m. Father shall do the pick up and drop
13 offs.

14 4) Father may have telephone or virtual (video) contact with the minor child on the days he does not
15 have care and custody of the minor child. Telephone or video calls shall occur between the hours
16 of 6:00 p.m. – 7:00 p.m.

17 5) Father shall provide Mother with the names of three (3) proposed 730 evaluators no later than
18 5:00 p.m., on June 23, 2026. For documentation purposes, Father shall email Mother his list of
19 three potential providers.

20 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAYELA GUTKNECHT,

Petitioner

VS.

MANUEL SANCHEZ MEDINA,

Respondent

) Case Number: FMS-26-387618

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: RENEWAL OF PASSPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Mayela Gutknecht and Respondent Manuel Sanchez Medina.
- 2) On 2/10/26, Petitioner filed a Petition for Custody and Support of Minor Children, which lists minor child Daisy Gutknecht-Medina (DOB: 3/19/18). Petitioner indicates that Petitioner and Respondent have signed an attached voluntary declaration of parentage or paternity.
- 3) On 2/10/26, Petitioner filed a Request for Order seeking “renewal of passport” to which a copy of the minor child’s expired passport is attached. Petitioner did not include facts in support of the Request for Order.
- 4) There is no Proof of Service on file indicating that the Petition for Custody and Support of Minor Children filed 2/10/26 or Request for Order filed 2/10/26 were served on Respondent.
- 5) Respondent did not file a Response or Responsive Declaration.
- 6) At the prior 4/23/26 hearing, the Court made a finding that Petitioner failed to serve the Petition for Custody and Support of Minor Children filed 2/10/26 and Request for Order filed 2/10/26 as

1 required by the Code of Civil Procedure. As such, the matter was continued to 6/18/26 for lack of
2 service.

- 3 7) There is still no Proof of Service on file indicating that the Petition for Custody and Support of
4 Minor Children filed 2/10/26 or Request for Order filed 2/10/26 were served on Respondent.

5 **B. Findings and Order**

- 6 1) Given that Petitioner was previously provided additional time to effectuate proper service and
7 failed to do so, the Court finds good cause to DENY Petitioner's Request for Order filed 2/10/26
8 without prejudice (i.e., Petitioner may refile).
- 9 2) The Court will prepare the Findings and Order After Hearing
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON PADUA,

Petitioner

VS.

RYAN TOLENTINO,

Respondent

) Case Number: FLD-21-396810

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Allison Padua (Mother) and Respondent Ryan Tolentino (Father). They share three minor children named Roman Tolentino (04/24/15); Alyssa Tolentino (02/23/17); and Aubrey Padua (04/15/18).
- 2) On January 12, 2023, the Juvenile Court issued an exit order, which provides that Mother has sole legal and sole physical custody of the three minor children. Father was not awarded any parenting time with the minor children. (See order filed 01/12/23).
- 3) On February 23, 2026, Father filed a Request for Order seeking a modification of the existing visitation orders. In particular, Father is asking this Court to order parenting time to Mother on the 2nd, 4th, and 5th weekends from Friday after school to Monday morning to school.
- 4) On March 20, 2026, Mother filed a Responsive Declaration in which she asks this Court to deny Father's requests.

- 1 5) On March 20, 2026, Father filed an additional declaration, which has been read and considered by
2 this Court.
- 3 6) On March 24, 2026, Father filed another declaration, which has been read and considered by this
4 Court.
- 5 7) On March 30, 2026, this Court held a “Readiness” hearing and set the matter for FCS Mediation
6 to occur on April 6, 2026 and set the matter for return hearing on June 18, 2026.
- 7 8) On June 12, 2026, Father filed a Supplemental Declaration, which has not been read, nor has it
8 been considered by this Court.
- 9 9) On June 16, 2026, the parties submitted a Stipulation and Order regarding Child Custody and
10 Visitation, which partially resolves some of the issues pending on June 18, 2026.

11 **B. Findings and Order**

- 12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.
 - 16 2) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JORDAN SOUZA,

Petitioner

VS.

SOPHIA BURLEY,

Respondent

) Case Number: FLD-25-397296

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties Petitioner Jordan Souza (Father) and Respondent Sophia Burley (Mother). There is one minor child subject to this proceeding: Jaxen Souza (DOB: 03/13/22).
- 2) On July 7, 2025, the Juvenile Court issued a “Custody Order – Juvenile – Final Judgment” in which Father was awarded sole legal and sole physical custody of the minor child. Mother was given up to 5 hours of professionally supervised visits twice per week to be monitored by Rally Family Services with a “step-up” plan envisioned by the Court.
- 3) On January 30, 2026, Mother filed a Request for Order seeking a modification of the existing child custody and visitation orders. Mother requests:
 - a. Wednesday/Thursday visits with J.S. from 10:00 a.m. – 8:00 p.m.
 - b. Increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m. plus an additional overnight each month until the parties reach a 50/50 schedule after approximately 3 months as follows: 2-2-5-5 where Mother is the

Wednesday/Thursday parent and Petitioner is the Monday/Tuesday parent, and they alternate weekends.

c. Exchanges to occur at Cameo House with Father responsible for coordinating pick-up and drop-offs of the minor child.

d. Joint legal and joint physical custody.

e. Establishment of a holiday schedule.

4) On March 2, 2026, the Court held a readiness hearing and referred the parties to Family Court Services (FCS) Mediation on March 26, 2026, and set a return hearing on April 30, 2026.

5) Father did not file an opposition to Mother's motion.

6) On April 30, 2026, the parties appeared and the Court adopted its tentative ruling, with the exception of B(2); B(6); and B(8). The matter was continued to June 18, 2026 for determination of Respondent's request for legal and physical custody; holiday schedule; and to address the potential for further modification of the existing orders.

7) On June 8, 2026, Mother filed a "Declaration of Sophia Burley re: Modification of Child Custody and Parenting Time," which has been read and considered by the Court.

8) June 16, 2026, counsel for Mother filed a "Status Update on Behalf of Petitioner Sophia Burley," which has been read and considered by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) Mother's request for joint legal custody is GRANTED. However, Father shall continue to have sole physical of the minor child.

3) Commencing April 30, 2026, Mother's parenting time with the minor child on Wednesdays and Thursdays shall be from 10:00 a.m. – 8:00 p.m. each week.

4) Commencing June 24, 2026, Mother's parenting time shall increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m.

- 1 5) Mother's Day – Child shall be in the care and custody Mother from 8:00 a.m. – 5:00 p.m. The
2 receiving parent to pick up the child.
- 3 6) Mother's Birthday - Child shall be in the care and custody Mother from 8:00 a.m. – 5:00 p.m.
4 The receiving parent to pick up the child.
- 5 7) Thanksgiving Holiday – Mother shall have care and custody of the minor child during the
6 Thanksgiving Holiday in Odd years. From Wednesday (day before Thanksgiving) at 8:00 a.m. –
7 Sunday at 12:00 p.m. The receiving parent to pick up the child.
- 8 8) Christmas Holiday – Mother shall have care and custody of the minor child during the Christmas
9 Holiday in Even years. From Wednesday, December 23, 2026 at 8:00 a.m. – Sunday, December
10 27, 2026 at 12:00 p.m. The receiving parent to pick up the child.
- 11 9) There shall be no further reviews. Should either parent wish to make further modification to this
12 Court's custody/visitation orders, they shall file a new Request for Order.
- 13 10) Any and all existing child custody and visitation orders, not in conflict with the orders made
14 herein, shall remain in full force and effect.
- 15 11) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 16 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KATHERINE GWEN WOO ARROYO,

Petitioner

VS.

BRIAN REVILLA ARROYO,

Respondent

) Case Number: FDI-13-779370

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Katherine Woo (Mother) and Respondent Brian Arroyo (Father). The proceedings herein relate to the parties two minor children: Brandon (DOB: 05/08/10) and Lucas (DOB: 02/15/13).
- 2) On March 27, 2026, Father filed a Request for Order seeking a modification of the existing child custody and visitation orders. In particular, Father is requesting:
 - a. Joint Legal Custody; and
 - b. Holiday Schedule.
- 3) On April 27, 2026, the Court held a “Readiness” hearing and the Court referred the parties to FCS Mediation on June 11, 2026 and scheduled the matter for a return hearing on June 18, 2026.
- 4) On May 26, 2026, Mother filed a Responsive Declaration, which has been read and considered by the Court.

1 5) On June 3, 2026, Respondent/Father filed a declaration which has been read and considered by
2 the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KYLE HENDERSON HAILEY,

Petitioner

VS.

PATRICIA HENDERSON HAILEY,

Respondent

) Case Number: FDI-22-796862

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD SUPPORT TO MODIFY CHILD SUPPORT; SPOUSAL OR
PARTNER SUPPORT; CHILD TAX CREDIT/CLAIM TO EXEMPTION FOR CHILDREN;
VOCATIONAL EVALUATION FILED ON 09/16/25

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kyle Henderson Hailey (Father) and Respondent Patricia Henderson Hailey (Mother).
- 2) On 9/16/25, Father filed a Request for Order seeking: (a) to modify child and spousal support, (b) orders related to child tax credit exemptions, and (c) an order for Mother to submit to a vocational evaluation. The matter was set for hearing on 11/19/25 in Dept. 416 because DCSS is involved in the case.
- 3) On 11/19/25, the Court issued the following orders (per the Amended Findings and Recommendation of Commissioner file dated 11/20/25):
 - a. An unallocated monthly support amount of \$5,000 retroactive to 11/4/24 per the agreement of the parties.
 - b. A vocational evaluation for Mother to be scheduled and completed.

- 1 c. The matter continued to 2/18/26 in Dept. 416 for review.
- 2 4) On 2/18/26, the matter was continued to 4/22/26 Dept. 414 by agreement of the parties.
- 3 5) On 4/22/26, the Court issued the following orders (per the Findings and Recommendation of
- 4 Commissioner file dated 4/22/26):
- 5 a. Effective 5/1/26, given that no guideline child support order was established at the time
- 6 the parties stipulated to family support, the Court issues an interim child support order in
- 7 the amount of \$1,505 per month, based on imputation of minimum wage to Mother. This
- 8 determination is made in absence of a prior guideline child support finding and is subject
- 9 to modification pending the findings of the vocational evaluator's report. This interim
- 10 guideline amount is not ordered for enforcement at this time.
- 11 b. Father shall continue to pay \$5,000 per month in combined child and spousal support
- 12 based on no objection from the parties.
- 13 c. The issue of determination of spousal support shall be heard on 6/18/26 in Dept. 403.
- 14 d. The matter is continued to 10/7/26 in Dept. 414 for review of the vocational evaluation.
- 15 e. Reservation of jurisdiction retroactive to filing date of the motion.
- 16 6) Neither party filed an update declaration

17 **B. Findings and Order**

- 18 1) Based on the procedural history set forth above, the Court finds the only matter at issue on
- 19 6/18/26 is determination of guideline temporary spousal support.
- 20 2) Neither party filed an update declaration; therefore, the Court presumes that the vocational
- 21 evaluation is not yet complete.
- 22 3) As such, and in accordance with the XSpouse report attached hereto and incorporated herein, the
- 23 Court finds Father owes Mother \$2,760 in guideline temporary spousal support effective 7/1/26.
- 24 4) This means that Father owes Mother \$1,505 in guideline monthly child support (per the Amended
- 25 Findings and Recommendation of Commissioner file dated 4/22/26) plus \$2,760 in guideline
- 26 monthly spousal support for a total monthly support order of \$4,265.
- 27 5) This interim guideline amount is not ordered for enforcement at this time because enforcement
- 28 would result in Father paying \$7,760 (\$5,000 in combined child and spousal support (pursuant to
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1 the Findings and Recommendation of Commissioner file dated 4/22/26) + plus \$2,760 in
2 guideline monthly spousal support as determined herein).

3 6) Accordingly, Father shall continue to pay Mother \$5,000 per month in combined child and
4 spousal support, which is subject to modification pending the findings of the vocational
5 evaluator's report.

6 7) The Court reserves jurisdiction to modify support retroactive to 9/16/25 (i.e., the filing date of the
7 motion).

8 8) Counsel for Father shall prepare the Findings and Order After Hearing.

9 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).

2026**Fixed Shares**

	Father	Mother
Number of children	0	1
Percent time with NCP	49.99%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	19875	0
Self employed income	0	3399
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	2373	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	402	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	13641
Mother	3169
Total	16810
Support	
Addons	0
Guideln CS	0
S.Clara SS	2760
Total	2760
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Settings changed**Proposed****Tactic 9**

CS	0
SS	2880
Total	2880
Saving	5
Releases	1

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	16811	16815
Percent change	0%	0%
Father		
Payment cost/benefit	-2760	-2691
Net spendable income	10881	10950
Change from guideline	0	69
% of combined spendable	65%	65%
% of saving over guideline	0%	1470%
Total taxes	5832	5642
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	9925	9925
Mother		
Payment cost/benefit	2760	2696
Net spendable income	5930	5865
Change from guideline	0	-65
% of combined spendable	35%	35%
% of saving over guideline	0%	-1370%
Total taxes	230	414
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	0	0 Father	0 Father	0 Father
	0000-00-00	49 - 51	0	0	0 Father	0 Father	0 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KRISTEN MCHALE,

Petitioner

VS.

ANDREW MCHALE,

Respondent

) Case Number: FDI-25-801992

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY'S
FEES AND COSTS, ARREARS, AND A PRELIMINARY DISTRIBUTION OF COMMUNITY
PROPERTY FUNDS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Kristen McHale (Wife) and Respondent Andrew McHale (Husband).

They share two adult children; there are no minor children subject to this proceeding.

2) On 9/30/25, Wife filed a Petition for Dissolution indicating the date of marriage is 10/24/99 and
date of separation is 9/3/25 for a marriage of 25 years and 10 months.

3) On 10/15/25, Husband filed a Response and Request for Dissolution indicating the date of
marriage is 10/24/99 and date of separation is 9/3/25 for a marriage of 25 years and 10 months.

4) On 12/15/25, the parties filed a Stipulation and Order, which provides the following relevant
provisions:

- a. Wife to have temporary exclusive possession of the parties' property in Healdsburg and
Husband to have temporary exclusive possession of the parties' property in San Francisco
(see section 1).

- b. A \$20,000 advancement of community funds to both parties (see section 3).
 - c. Husband to pay Wife \$10,006 per month in temporary spousal support commencing 10/1/25 in accordance with an attached XSpouse report (see section 4).
 - d. Husband to pay Wife Smith/Ostler bonus support on income earned in excess of his \$38,480 monthly base salary (see section 5).
 - e. Credits to Husband for payments made to or on behalf of Wife (see section 6).
 - f. Reservation of jurisdiction on support retractive to 9/30/25 (see section 7).
 - g. Appointment of a joint neutral forensic expert, Natalie McFarlin, CPA (see section 13).
- 5) On 2/20/26, Wife filed a Request for Order seeking modification of temporary spousal support to guideline, enforcement of payment of spousal support arrears, \$50,000 in Family Code section 2030 attorney's fees and costs, and an advancement of community property funds.
 - 6) On 2/20/26, Wife file an attorney declaration substantiating her request for \$50,000 in Family Code section 2030 attorney's fees.
 - 7) On 2/20/26, Wife filed an Income and Expense Declaration.
 - 8) On 4/2/26, the Court entered an earnings assignment order for \$10,006 in monthly spousal support.
 - 9) On 4/17/26, Husband filed a Request for Hearing Regarding Earnings Assignment.
 - 10) On 6/3/26, Wife filed a Responsive Declaration in opposition to Husband's Request for Hearing Regarding Earnings Assignment.
 - 11) On 6/4/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order filed 2/20/26. Husband requests the Court permit the sale of the parties' property in Healdsburg, where Wife resides, under Family Code section 2032(d).
 - 12) On 6/4/26, Husband filed an Income and Expense Declaration.
 - 13) On 6/4/26, Husband filed Declaration of Dima Brodskiy.
 - 14) On 6/10/26, Husband filed a Reply Declaration regarding his Request for Hearing Regarding Earnings Assignment.
 - 15) On 6/11/26. Wife filed a Reply Declaration regarding her 2/20/26 Request for Order. Wife opposes the sale of the property in Healdsburg until the parties have a complete report form their joint expert, Natalie McFarlin, CPA.

16) On 6/15/26, Husband filed a vocational evaluation for Wife.

B. Findings and Order

1) A spousal support modification may be granted only upon a showing of material change in circumstances. See *Marriage of West* (2007) 152 CA4th 240, 246.

2) A material change in circumstances is required even if the current order was established by stipulation. See *Marriage of McCann* (1996) 41 CA4th 978, 982.

3) Here, the parties stipulated to a temporary spousal support order wherein Husband is ordered to pay Wife \$10,006 per month effective 10/1/25. See Stipulation and Order file dated 12/5/25.

4) The Court finds Wife did not sufficiently establish a material change in circumstances warranting modification of this Stipulation and Order as it is undisputed that Husband's monthly income remains the same.

5) The Court declines to impute any income to Wife at this time; therefore, Husband's request for imputation of income to Wife is DENIED without prejudice.

6) The Court will not amend the earnings assignment order; however, the Court confirms that Husband is under no obligation to pay the mortgage or carrying costs on the Healdsburg property.

7) The Court reserves jurisdiction over Wife's requests for unpaid arrears and Smith/Ostler bonus support. The Court has insufficient information to calculate what is owed in part because the parties agreed to meet and confer regarding credits to Husband for payments made to or on behalf of Wife. The parties are encouraged to continue to meet and confer regarding this issue.

8) Wife's request for an additional advancement of community property funds is DENIED.

9) Wife's request for Family Code section 2030 attorney's fees is GRANTED in the amount of \$25,000 subject to reallocation. The Court finds a disparity in income and ability to pay for legal representation between the parties. The Court further finds that Husband is reasonably likely to have the ability to pay for legal representation for both parties and \$25,000 in attorney's fees and costs are reasonable and necessary. Husband shall pay half this balance by 7/18/26 and half this balance by 8/16/26.

10) Husband's request to compel the sale of the Healdsburg property is DENIED without prejudice.

11) The Court encourages the parties to meet and confer to attempt to reach a global settlement. Once the report from joint neutral forensic expert, Natalie McFarlin, CPA is completed, either party

1 may file an At-Issue Memorandum for a Status Conference at which time they can request a
2 Judicial Settlement Conference for the purpose of resolving all financial issues.

3 12) Counsel for Wife shall prepare the Findings and Order After Hearing.

4 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSIE JAMES DIONNE,

Petitioner

VS.

CHELSEA ANNE MCELVEEN,

Respondent

) Case Number: FDI-25-801998

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ENTRY OF JUDGMENT OF DISSOLUTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Josie James Dionne and Respondent Chelsea Anne McElveen.
- 2) On 10/6/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/23/24 and date of separation is 5/30/25 for a marriage of 9 months.
- 3) On 1/23/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/23/24 and date of separation is 5/30/25 for a marriage of 9 months.
- 4) On 5/4/26, Respondent filed a Request for Order seeking entry of Dissolution Judgment based on an attached Marital Settlement Agreement (MSA), which is unsigned.
- 5) On 5/8/26, Petitioner filed an Income and Expense Declaration.
- 6) On 5/11/26, Petitioner filed an Income and Expense Declaration.
- 7) On 6/4/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner states she agrees to dissolution of marital status but opposes Petitioner's request, asserting Respondent has not provided complete financial disclosures and the parties entered into a separate written agreement regarding debt allocation and is not included in the MSA

Respondent proposed. Petitioner states she requested Respondent disclose business records related to Respondent's business interests by 5/22/26.

- 8) On 6/5/26, Respondent filed a Reply Declaration wherein she objects to the timeliness of service and filing of Petitioner's Responsive Declaration. Respondent asserts she has provided complete financial disclosures, and Petitioner's email requesting disclosure of business records does not constitute formal discovery. Respondent disputes that the validity of the separate written agreement regarding debt allocation. Respondent requests \$7,500 in Family Code section 271 sanctions against Petitioner.
- 9) The Court notes both parties filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (form FL-141): Respondent on 4/6/26 and Petitioner on 5/11/26.

B. Findings and Order

- 1) Respondent's request for entry of Dissolution Judgment based on an unsigned MSA is DENIED. The Court cannot enter an agreement to which both parties do not agree.
- 2) Respondent's request for \$7,500 in Family Code section 271 sanctions is DENIED.
- 3) To advance in the Court's dissolution process, either party may file an At Issue Memorandum to request a Status Conference at which time a trial date can be requested if it is determined that the parties are ready for trial.
- 4) The Court will prepare the Findings and Order After Hearing.